

2.

CASE #	CASE NAME	HEARING NAME
CVRI2401966	OLIVA VS INLAND EMPIRE UTILITIES AGENCY	MOTION TO CONTINUE TRIAL READINESS CONFERENCE AND TRIAL

Tentative Ruling:

The Court DENIES the Motion to Continue. The evidence does not establish good cause for a continuance. (Rule 3.1332(c).) Absent a showing of diligence, the failure to complete discovery or other trial preparation does not constitute good cause. (Rule 3.1332(c)(6).)

3.

CASE #	CASE NAME	HEARING NAME
CVRI2402667	AGUIRRE VS ARTEAGA	MOTION FOR SUMMARY ADJUDICATION ON COMPLAINT

Tentative Ruling:

The Court GRANTS Defendant/Plaintiff, Jaime Francisco Arteaga, Jr.'s Request for Judicial Notice. The Court GRANTS summary adjudication of Arteaga's partition action, and the 9th cause of action for partition in Aguirre's FAC, in favor of Arteaga and against Aguirre.

A co-owner of real or personal property may bring an action for partition to sever the unity of possession." (*Schwartz v. Shapiro* (1964) 229 Cal.App.2d 238, 257; *LEG Investments v. Boxler* (2010) 183 Cal.App.4th 484, 493.) Partition changes the rights of cotenants from common possession of the entire property into individual rights of exclusive possession of some portion of the property or to sale proceeds of the property for each co-tenant. (*Dabney v. Dabney* (2002) 104 Cal.App.4th 379.)

Partition is an equitable remedy that is governed by statute. (*Cummings v. Dessel* (2017) 13 Cal.App.5th 589, 596-597.) In an action for partition, the court determines the interests of the parties, and whether the plaintiff has the right to partition. (CCP §§ 872.610, 872.710.) "If the court finds that the plaintiff is entitled to partition, it shall make an interlocutory judgment that determines the interests of the parties in the property and orders the partition of the property and, unless it is to be later determined, the manner of partition." (CCP § 872.720(a).) If demanded, a co-owner is entitled to partition as an absolute right. (*Williams v. Williams* (1967) 255 Cal. App. 2d 648, 651.)

There are three methods of partition: (1) physical division in kind of the property (CCP § 872.810); (2) sale of the property (CCP § 872.820); and (3) division by appraisal. In lieu of dividing the property among the parties, the court shall order the

property be sold and the proceeds divided among the parties in accordance with their interests in the property if the parties agree to such relief or the court determines sale and division of the proceeds would be more equitable than a division of the property. (CCP § 872.820.)

In this motion, Arteaga seeks summary adjudication of four issues: 1) partition applies to the subject property (CCP § 874.311, *et. seq.*; 2) the parties are entitled to an adjudication of the fair market value (FMV) (CCP § 874.316); 3) Aguirre irrevocably elected partition by sale in her FAC triggering CCP § 874.217(a)'s exclusion of the selling cotenant from the class of eligible purchasing cotenants; and, 4) Arteaga seeks partition by buyout, and is entitled to purchase Aguirre's interest (CCP § 874.317.)

Arteaga asserts that as a co-owner of the subject property, he has an absolute right to partition unless 1) he is statutorily ineligible (CCP § 874.317(a)) or 2) he is barred by a valid waiver (CCP § 872.710(b)). The Partition of Real Property Act (Act) "applies to real property held in tenancy in common where there is no agreement in a record binding all the cotenants which governs the partition of the property. (CCP § 874.311(a), (b).) The Act applies to partition action filed on or after 1/1/23. (CCP § 874.311(c).) The Court determines the FMV of the property by ordering an appraisal unless all cotenants have agreed to the value or to another method of valuation or the court determines the evidentiary value of the appraisal is outweighed by the costs of the appraisal. (CCP § 874.316.)

CCP § 874.317(a) provides that "[i]f any cotenant requested partition by sale, the court shall, after the determination of value under section 874.316, send notice to the parties that any cotenant except a cotenant that requested partition by sale may buy all the interests of the cotenants that requested partition by sale." Within 45 days of sending such notice, "any cotenant except a cotenant that requested partition by sale may give notice to the court that it elects to buy all the interests of the cotenants that requested partition by sale." Based on this authority, Arteaga argues that partition must be ordered and he must be allowed to buy out Aguirre's interest in the property.

It is undisputed that Arteaga is Plaintiff, Cynthia Aguirre's son, and that she is the daughter of Frank Aguirre (deceased). (Undisputed Material Fact [UMF] No. 1.) Frank Aguirre had transferred title to the property to himself, Cynthia Aguirre, and Arteaga, as joint tenants. (UMF No. 2.) Frank Aguirre passed away on 9/9/22, which left Cynthia Aguirre and Arteaga and surviving joint tenants. (UMF Nos. 4-5.) On 5/17/224, Arteaga recorded a declaration to sever the joint tenancy leaving him and Aguirre, as tenants in common, each with a 50% interest. (UMF No. 6.)

On 5/15/24, Aguirre's original verified Complaint was filed, which included a cause of action for partition by sale, which was included in her FAC. (UMF No. 10.) On 5/21/24, Arteaga filed his Complaint, which contained a cause of action for partition. (UMF No. 12.)

In January of 2025, the parties stipulated to an appraiser (C. D. McCullough) to obtain the FMV of the property. (UMF No. 8.) On 2/24/25, Mr. McCullough visited the property and prepared a certified appraisal of the property finding the FMV to be \$542,000. (UMF No. 9.)

Based on these facts, Arteaga argues that both parties seek partition, but Aguirre has waived her right to purchase Arteaga's interest in the property by requesting partition *by sale*. (CCP § 874.317(a).)

To the contrary, Aguirre asserts that Arteaga is not entitled to buy out Aguirre's interest because he filed a competing Complaint for partition, and has not established that he has reserved a right to buy out Aguirre when he is also a cotenant requesting partition. (Aguirre's Separate Statement [Aguirre's SS], Issue No. 2, Additional Material Facts [AMF], No. 1.) Aguirre also asserts that her partition cause of action is alleged as an *alternative* to her other causes of action. (Aguirre's SS, UMF No. 10; Issue No. 3, AMF No. 1.) Therefore, she concludes there are triable issues of material fact as to the ownership interests in the property.

In addition, Aguirre argues there is a genuine issue of material fact as to the FMV of the property because Arteaga is relying on an appraisal that is more than a year old and the property's value has increased since the time the appraisal occurred (February of 2025.) (Aguirre's SS, Issue No. 1, AMF Nos. 1-2.) She asserts the FMV is \$616,195 as indicated on Redfin.com. (Aguirre's SS, Issue No. 1, AMF, Nos. 1-2.) Without citing any authority, Aguirre concludes that the Court "needs to try the issue of" FMV based on the current conditions of the property.

Further, Aguirre argues that Arteaga is not entitled to partition when the parties' interests have not been determined and Aguirre's equitable claims related to ownership and title are still pending (e.g., Aguirre claims 100% title in her quiet title cause of action.) She asserts those claims must be determined before a judgment for partition can be entered.

In response to Aguirre's arguments in the Opposition, Arteaga argues that Aguirre's attempt to create a dispute over FMV fails because "using inadmissible internet estimates (Redfin) is legally insufficient." (Reply. P. 2:8-9.) Specifically, Arteaga asserts the Redfin.com estimate lacks foundation, constitutes hearsay, lacks authentication, and constitutes improper expert opinion without a reasoned explanation of methodology. As such, Arteaga argues this "evidence" should be ignored. Although Arteaga did not assert properly formatted formal objections (Cal. Rules of Court, Rule 3.1350(c)), the only admissible evidence is the stipulated appraisal.

In addition, Arteaga disputes a critical additional material fact on the ground that Arteaga's Complaint explicitly alleges he "is electing to buy out all interests of the other cotenants of the Property." (Arteaga's Reply Separate Statement [RSS], Issue No. 2, AMF No. 1.)

Moreover, Arteaga asserts that Aguirre has admitted certain facts according to the Court's 5/29/26 order deeming matters admitted as against Aguirre. Specifically, Request for Admission (RFA) No. 5 states "ARTEAGA's interest in the MARTIN STREET is as a tenant in common with a 50% interest in said real property." (Reply, p. 4:26-28.) RFA No. 6 states "YOUR [Aguirre] interest in Martin Street is as a tenant in common with a 50% interest in said real property." (Reply, p. 5:1-2.) RFA No. 7 states "YOU [Aguirre] are not entitled to credits, claims, offsets or reimbursements against ARTEAGA's 50% ownership interest in MARTIN STREET." (Reply, p. 5:3-4.) RFA No. 8 states "ARTEAGA has a statutory right to partition his interest in MARTIN STREET from YOUR claimed interest in MARTIN STREET, pursuant to CCP § 874.311.) (Reply, p. 5:5-6.) Notably, Aguirre failed to oppose the motion to deem RFAs admitted.

Based on the foregoing, Arteaga has established that his Complaint states he elected to buy out his cotenant's interest in the subject property, which barred Aguirre from buying out Arteaga's interest. (CCP § 874.317(a).) Arteaga also established that he and Aguirre each own a 50% interest in the title to the subject property based on the 2021 grant deed from Frank Aguirre (deceased.) Aguirre has not established otherwise, nor has she raised any triable issue of material fact as to the partition cause of action. Thus, summary adjudication of that claim is appropriate.

4.

CASE #	CASE NAME	HEARING NAME
CVRI2407387	PELAYO VS AMERICAN HONDA MOTOR CO., INC.	MOTION TO BIFURCATE

Tentative Ruling:

The Court directs the moving party to Section E.7. of the Court's Trial Setting Order, issued July 17, 2026. The Court finds that based upon its prior Order; the Motion is moot.

5.

CASE #	CASE NAME	HEARING NAME
CVRI2506218	DAO VS AMERICAN HONDA MOTOR CO., INC.	MOTION TO BIFURCATE

Tentative Ruling:

The Court directs the moving party to Section E.7. of the Court's Trial Setting Order, issued March 10, 2026. The Court finds that based upon its prior Order; the Motion is moot.